

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHRISTINA LYNN NOONEY,

Petitioner

VS.

MICHAEL JOSEPH NOONEY,

Respondent

) Case Number: FDI-25-800824

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: VISITING JUDGE JANET FRANGIE

REQUEST FOR ORDER TEMPORARY EMERGENCY ORDER, EX PARTE REQUEST FOR ORDER
PROHIBITING TRANSFERS TO 3D PARTIES, COMPLIANCES WITH ATROS AND OST ON
REQUESTS TO DEPOSIT INCOME TO BLOCKED ACCOUNT, EQUALIZE CASH AND OTHER
ORDERS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Christina Lynn Nooney and Respondent Michael Joseph Nooney. They share three adult children.
- 2) On 1/16/25, Petitioner filed a Petition for Legal Separation indicating the date of marriage is 8/10/96 and date of separation is "TBD."
- 3) On 5/9/25, Respondent filed a Response and Request for Legal Separation indicating the date of marriage is 8/10/96 and date of separation is 1/16/25 for a marriage of 28 years and 5 months.
- 4) On 6/5/26, Petitioner filed an ex parte Request for Order seeking emergency relief regarding Respondent's alleged violations of the Standard Family Law Restraining Orders (ATROS) and improper dissipation of community funds. Petitioner requests orders affirming the ATROS and blocking accounts, an accounting of funds, equal division of all cash in the marital estate, and

1 sanctions. Petitioner alleges Respondent breached his fiduciary duty to her by transferring
2 significant funds to third parties without her consent.

3 5) On 6/5/26, Respondent filed a Responsive Declaration in opposition to Petitioner's requests.

4 6) On 6/5/26, the Court denied Petitioner's request for emergency relief and set the matter for
5 regular hearing on 7/23/26.

6 7) On 7/10/26, Respondent filed a second Responsive Declaration in opposition to Petitioner's
7 requests. Respondent acknowledges the restrictions the ATROS inflict on transferring community
8 property and asserts there is no risk of the community estate – which he estimates is worth around
9 \$30,000,000 – not being equalized. Respondent opposes an early/partial equalization of assets.

10 8) On 7/16/26, Petitioner filed a Reply Declaration reiterating her requests. Petitioner asserts that
11 Respondent does not deny transferring significant funds (approximately \$2,400,000) out of the
12 marital estate or provide any factual basis for doing so.

13 9) On 7/16/26, Petitioner filed Reply Declaration of James M. Good, CPA.

14 10) On 7/16/26, Petitioner filed Reply Declaration of Caroline Fitzpatrick.

15 11) On 7/20/26, Respondent filed a Motion to Strike.

16 **B. Findings and Order**

17 1) As a preliminary issue the Court rules on Respondent's Motion to Strike filed 7/20/26 as follows:

- 18 a. Specific Objection No. 1: OVERRULED.
- 19 b. Specific Objection No. 2: SUSTAINED and stricken.
- 20 c. Specific Objection No. 3: SUSTAINED and stricken.
- 21 d. Specific Objection No. 4: SUSTAINED and stricken.

22 2) In proceeding to the merits of Petitioner's Request for Order filed 6/5/26, the Court rules as
23 follows:

24 3) Petitioner's request that Respondent or any agent of Respondent be prohibited from making any
25 asset and cash transfers (including donations) or paying the expenses of any third parties without
26 Petitioner's advance written consent is GRANTED. Without Petitioner's advance written consent,
27 Respondent or any agent of Respondent is restrained from making any cash transfers (including
28 donations) or paying the expenses of third parties, including, but not limited to: Sereene Badra,
29

Vanessa Cornachhioli, Madison Arroyo, John Dendrenelis, Chris Mess, DeSmet Jesuit High School, Lisa Nooney, and Patricia Nooney.

- 4) Respondent is hereby admonished to comply with the Standard Family Law Restraining Orders (ATROS).
- 5) Petitioner's request that all income distributions from Simpson Thacher & Bartlett (STB Law) be placed into a new blocked, joint account is DENIED.
- 6) Petitioner's requests that Respondent be ordered to provide Petitioner with all documentation received by STB Law, monthly account statements for all investment and retirement accounts, and an accounting of funds for each transfer identified in Exhibit A to Attachment 9 of her 6/5/26 Request for Order are DENIED without prejudice; Petitioner may conduct discovery.
- 7) Petitioner's request for equal division of all cash in the marital estate is DENIED without prejudice as division of the marital estate is a trial issue.
- 8) Respondent is prohibited from the use of cash outside the scope permitted by the ATROs, including cash in the following accounts:
 - a. Chase #1150;
 - b. Chase #5126;
 - c. Wells Fargo #0172; and
 - d. Wells Fargo #5555.
- 9) Petitioner's request for exclusive use of Wells Fargo account #5555 and related orders including tax liabilities is DENIED without prejudice as characterization and division of the marital estate is a trial issue.
- 10) Petitioner's request regarding characterization of funds transferred by Respondent is similarly DENIED without prejudice as characterization and division of the marital estate is a trial issue.
- 11) The Court hereby orders the accounts listed below blocked as to both parties. Neither party is permitted to transfer or withdraw funds from any of the following accounts, without advance written consent from both parties or further order of court:
 - a. Fidelity #8759;
 - b. Fidelity #5676;
 - c. Fidelity #7519;

- d. Fidelity IRA #2013;
- e. Ameriprise #9133;
- f. Charles Schwab #2627; and
- g. Citibank #3284

12) The Court reserves jurisdiction over Petitioner's request for \$25,000 in sanctions under Family Code sections 1100, 2040, and 271.

13) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

14) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).